D1 · DECISION BRIEF

# An AI agent that replies to every applicant in minutes, ranks the eligible ones fairly, and books interviews for the top of the list

Retail & logistics customer · India, US, Germany · ~400,000 applications → ~20,000 hires a year · Live before the seasonal peak, 4 months away

OUR DECISION

**Build it. The agent checks must-haves, ranks every eligible applicant against the job, and invites the top N over WhatsApp/SMS. The recruiter chooses N.**

Two guardrails make it safe to automate. **(1)** Missing information leads to a question, never a rejection. **(2)** Ranking uses 5 job criteria with points anyone can read, never CV wording or personal details. Every step is recorded for auditors.

## 1 What they asked for, and what we'll do

| THEY ASKED FOR | OUR ANSWER |
|---|---|
| **Read every application** | **Yes.** Every applicant is checked and gets a first reply within minutes, day or night. |
| **Rank candidates against the job** | **Yes.** Everyone who meets the must-haves gets a score out of 100 on the same 5 job criteria (below). Ranking runs daily. |
| **Reject the bottom of the pile automatically** | **Yes, with reasons.** *Not eligible*: a must-have the applicant confirmed they don't meet. *Not shortlisted*: below the recruiter's cut-off. Both are told, can see their application data, and can ask why. Candidates never see scores or rankings. |
| **Book interviews over WhatsApp and SMS** | **Yes.** The top N pick a slot in the chat. If someone declines, the next person on the reserve list is invited automatically. |
| **No recruiter in the first stage** | **Almost.** The recruiter sets N and approves the shortlist in one click, or turns on auto-send (US and India). In Germany a recruiter also confirms each "not eligible". |
| **Live in 4 months** | **Yes** in the US and India. **Germany depends on works council timing** (fallback in section 6). |

## 2 How it works

**1 · Apply**
Phone or job board. First reply in minutes.

**2 · Check must-haves**
Right to work, shift, lifting. Anything missing? Ask on WhatsApp/SMS.

**3 · Rank**
Eligible applicants scored 0–100 on 5 job criteria. Personal details hidden.

**4 · Shortlist top N**
Recruiter sets N and a reserve list, then approves (or auto-send).

**5 · Invite**
WhatsApp/SMS slot booking. Reserve fills any declines.

## 3 What the ranking uses, and what it never uses

**35 pts**
Relevant hands-on experience (warehouse, delivery, stockroom, kitchen, trades)

**20 pts**
Extra shift flexibility (weekends, overtime)

**15 pts**
Can start within 1–2 weeks

**15 pts**
Available for the full peak season

**15 pts**
Equipment & safety skills (forklift, scanner)

**Never used:** name, age, gender, photo, home address, career gaps, CV wording or layout, school. Points come from structured answers (form, CV facts, WhatsApp replies), not CV writing. Criteria are set by the hiring manager and legal, and versioned.

## 4 The hiring manager's "best hire" concern

He's right that ranking *CV text* would have rejected his best hire. Our design is different:

- **Ask, don't guess.** A missing CV or missing detail triggers a 90-second WhatsApp chat before anything is scored.
- **Related experience counts.** 3 years as a line cook earns most of the experience points. In our prototype, the applicant with no CV ranks #2 of 37.
- **Proof before launch.** We replay last year's hires, including his best hire, through the agent. Strong hires must land inside a normal shortlist.
- **Safety net below the line.** A reserve list, a weekly recruiter spot-check of people just below the cut-off, and an "ask why" reply for every applicant.

## 5 What we could show an auditor

**For any applicant: a time-stamped trail that can't be edited**

- Application received, and the details hidden from the agent
- Questions asked on WhatsApp/SMS, and the answers
- Each must-have: met or not, and the evidence (form, CV, answer)
- Score per criterion with its evidence, total, and rank (e.g. #2 of 37)
- The cut-off N and who set it; who approved the shortlist
- Outcome and exact message sent: invited, booked, declined, not shortlisted or not eligible (the reserve list is internal; those applicants aren't messaged unless a place opens)
- Any recruiter override, with the reason

**For every round, and every week**

- Settings: rules version, N, reserve size, approval mode, country
- Funnel: applied → eligible → shortlisted → booked
- Fairness: invite rates by self-declared group (never shown to the agent), alert if any group falls below 80% of the highest
- Spot-check results and appeals

**Export**

One applicant's record (JSON) or the whole round (CSV). See the prototype's audit trail view (D3).

## 6 Legal points to verify, and with whom

We're not assuming the law. These are the questions we'd put to the right people in week 1, and what we do until we have answers.

| COUNTRY | WHAT WE NEED TO CONFIRM | WHO WE ASK | OUR DEFAULT UNTIL CONFIRMED |
|---|---|---|---|
| **Germany** | Whether ranking and "not eligible" decisions count as solely automated under GDPR, and whether a recruiter approving the shortlist is enough human involvement; EU AI Act duties for hiring tools; whether the works council must agree the criteria first. | Customer's employment lawyer and data protection officer; works council; our EU privacy counsel | A recruiter makes every decision: approves each shortlist, confirms each "not eligible", no auto-send. If the works council hasn't agreed by peak, the agent only replies, asks questions and books interviews; recruiters shortlist as they do today. |
| **United States** | Whether the ranking counts as an automated hiring tool under local rules (e.g. New York City's bias-audit and notice rule; similar rules in some states); fair wording of physical requirements; consent for text messages. | Customer's employment counsel; independent bias auditor where required; our US counsel | Go live site by site as counsel clears. Notice and consent at apply. Bias audit before launch where required. |
| **India** | Notice and consent rules under India's data protection law (DPDP Act) for WhatsApp contact and scoring; deadlines for access and deletion requests. | Customer's privacy officer; our India privacy counsel | Notice in the first message, in local languages. Self-service data link. |

## 7 Trade-offs we accept

- **One click from a recruiter per shortlist** (not per applicant) by default. That keeps a human accountable for the cut-off. US and India can switch to auto-send.
- **Daily ranking, not instant.** Ranking needs a pool, so the first reply is instant but the invite comes within 24 hours. That's still inside the competitor's 48 hours.
- **Fixed criteria.** Recruiters can change N but not the weights. That's slower to tweak, but consistent and auditable.
- **People just below the cut-off may be good.** The reserve list and spot-checks reduce, but don't remove, that risk.

## 8 Assumptions (one line each)

- Most applicants who don't fit miss a clear must-have (shift, licence, right to work), not "quality".
- The platform's messaging, scheduling and candidate-record features can be reused without major changes.
- Hiring managers can agree must-haves and ranking criteria per job type in one workshop.
- First interviews are short, standard slots on shared site calendars.

## 9 What we need from the customer now

- Head of talent acquisition signs off the 5 ranking criteria and the "never used" list.
- Named contacts in legal, privacy and the German works council for week-1 reviews.
- Last year's hiring data, including the pilot manager's best hire, for the replay test.